

Court No. - 29

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar
Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Sri Saurabh, the learned counsel has put in appearance on behalf of the respondent.

Put up this matter on Tuesday i.e. 9.8.2016 to enable the learned counsel for the Electricity Department to seek necessary instructions.

Order Date :- 5.8.2016

Kuldeep

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

The petitioner has prayed for quashing of the demand notice by which 'protective load charges' for the period of October, 2006 to September, 2015 has been demanded. The contention of the petitioner is that he has not made any request by means of any application or agreement in terms of Clause 4.27 of the U.P. Electricity Supply Code, 2005 for protective load.

On the other hand, Sri Saurabh, the learned counsel for the Electricity Department states that he has received instructions to intimate the Court that the petitioner was given the protective load facility pursuant to a written application made by the petitioner.

In view of the aforesaid, let a counter affidavit be filed within two weeks.

List on 26.8.2016.

Order Date :- 9.8.2016

Kuldeep

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 36336 of 2016

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Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

One week further time is allowed to the respondents to file a counter affidavit.

List thereafter.

Order Date :- 8.9.2016

AKJ

(Vipin Sinha, J.) (Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

The case is passed over on the illness slip of learned counsel for the respondent.

List in the next cause list.

Order Date :- 19.9.2016

Sandeep

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Tarun Agarwala, J.

Hon'ble Prabhat Chandra Tripathi, J.

Counter affidavit filed today is taken on record.

One week time is allowed to the petitioner to file rejoinder affidavit.

List thereafter.

Order Date :- 27.9.2016

Atmesh

(Prabhat Chandra Tripathi, J.)

(Tarun Agarwala, J.)

Court No. - 21

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Passed over on the illness slip of Shri Anshul Kumar Singhal, learned counsel for the petitioner.

List again in the next cause list.

Order Date :- 3.1.2018

Sumaira

Court No. - 40

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar
Agarwal

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Saurabh

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Sri Anshul Kumar Singhal, learned counsel for the petitioner
has sent his illness slip today.

List in the next cause list.

Order Date :- 8.5.2018

Monika

Court No. - 40

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Sri Anshul Kumar Singhal, learned counsel for the petitioner has sent an illness slip today.

List this case in the next cause list.

Order Date :- 15.5.2018

S. Chaurasia

Court No. - 40

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Learned counsel for the petitioner submits that the rejoinder affidavit is under preparation. Let the same be filed within a week.

List in the next cause list.

Order Date :- 22.5.2018

KA

Court No. - 40

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar
Agarwal

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, Saurabh

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Two weeks' and no more time is granted to the petitioner to file
rejoinder affidavit.

List thereafter.

Order Date :- 29.5.2018

KA

Court No. - 38

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Shashi Kant, J.

Learned counsel for the petitioner submits that he may be permitted to file amendment application in the registry.

He is permitted to do so.

Learned counsel for the respondent prays for and is granted two weeks' time to file counter affidavit to the aforesaid amendment application.

List after two weeks.

Order Date :- 5.7.2018

A. Pt. Singh

(Shashi Kant, J.) (Abhinava Upadhyaya, J.)

Court No. - 21

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Saurabh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

As prayed, a weeks' time is granted to file rejoinder affidavit.

List on 17.4.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 24.3.2023

Jaideep/-

Court No. - 3

Case :- WRIT - C No. - 36336 of 2016

Petitioner :- M/S Ganga Dairy

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi, C.S.C., Saurabh

Hon'ble Shekhar B. Saraf, J.

Hon'ble Prashant Kumar, J.

1. The present writ petition has been appearing in the Warning List under the heading "Oldest Pending Cases in this High Court for Priority Hearing".
2. None appears on behalf of the petitioner even in the revised call.
3. Learned Standing Counsel appears on behalf of the State respondents.
4. Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.
5. The writ petition is disposed of.
6. In the event, the petitioner is of the view that the cause of action still survives, liberty is granted to the petitioner to file an application for recall/variation/modification of this order in accordance with law.

Order Date :- 4.8.2025

Kuldeep

(Prashant Kumar, J.) (Shekhar B. Saraf, J.)